



U.S. Department
of Transportation

Research and
Special Programs
Administration

SEP 24 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9595
(THIRD REVISION)

EXPIRATION DATE: AUGUST 31, 2000

(FOR RENEWAL, SEE 49 CFR 107.109.)

1. GRANTEE: Dyno Nobel Inc.
Salt Lake City, Utah
2. PURPOSE AND LIMITATIONS: This exemption authorizes the transportation of certain unapproved Division 1.1D explosive materials in commerce in packagings presently authorized for Division 1.1D explosives, and provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.62
5. BASIS: This exemption is based on Dyno Nobel's application dated February 17, 1998, submitted in accordance with 49 CFR 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification Number	Packing Group
Explosive, blasting, type, E.	1.1D	UN0241	II

7. PACKAGING AND SAFETY CONTROL MEASURES. Packagings prescribed are metal or fiber drums not exceeding 55 gallon capacity with liners consisting of two polyethylene leak-proof bags each having a minimum thickness of 6 mils and closed with a tie. The drums must be securely closed.

8. SPECIAL PROVISIONS:

a. Explosives shipped under this exemption must be:

- i. Stable when maintained at 75°C for 48 hours. Records of tests must be on file at point of shipment and must be made available to DOT upon request;
- ii. Transported in a motor vehicle operated by the owner of the explosive or transported by Econexpress or Tri State.
- iii. Accompanied by a person, in addition to the driver of the motor vehicle, who is qualified by training and experience to handle the explosive.

b. This exemption authorized transportation of the explosives Dyno Nobel's production facilities near Provo, Utah or Suscon, Pennsylvania to Dyno Nobel's disposal facilities only.

c. Dyno Nobel's "Special Instructions for Motor Vehicle Drivers" must be completed and carried in the motor vehicle used to transport explosives under this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

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No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.

for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

9/24/98
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590
Attention: DHM-31

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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